

Leave to Amend: "In the case of either a demurrer or a motion for judgment on the pleadings, leave to amend should be granted if there is any reasonable possibility that the plaintiff can state a good cause of action." *Gami v. Mullikin Medical Ctr.* (1993) 18 Cal.App.4th 870, 876. After a judgment on the pleadings is granted, the same standards apply in granting leave to amend as for demurrers and leave is routinely granted. See Code Civ. Proc., § 438(h); *Virginia G. v. ABC Unified Sch. Dist.* (1993) 15 Cal. App. 4th 1848, 1852 [holding that when a motion for judgment on the pleadings is granted, denial of leave to amend constitutes an abuse of discretion if the pleading does not show on its face that it is incapable of amendment].) If leave to amend is granted, the party against whom the motion is granted must be given 30 days to file an amended pleading. (Code Civ. Proc., § 438(h)(2).) If, as Plaintiff represents, Plaintiff did present timely government claims as required by Gov. Code section 900 et seq., then there is a reasonable possibility that the Complaint can be amended to state a cause of action.

The Motion for Judgment on the Pleadings is **GRANTED** with leave to amend. Plaintiff has 30 days leave to amend from notice of entry of order. A proposed order has been lodged and will be modified.

IN RE: HARDING

CASE NUMBER: 26CV-0210051

Tentative Ruling on Petition for Change of Name: Petitioner Katie Anna Harding seeks to change her name to Katie Anna Smith. Petitioner also seeks to change the last name of her three minor children. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted.

Additionally, when a petition to change the name of a minor is brought by one parent only, the non-petitioning parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). If the non-petitioning parent lives out of state, service may be accomplished by certified mail. CCP §§ 415.10 and 415.40. Here, the fathers are not listed in the Petition. However, three Proofs of Service were filed indicating that Eric Stock, Damien Harding, and Anthony Retamoza were served by mail at addresses in California. If these individuals are the fathers of the minors, they will need to be personally served.

An appearance by Petitioner is necessary on today's calendar to confirm the names of the fathers and to select a new hearing date. Petitioner will need to obtain an Amended Order to Show Cause with the new hearing date and effect personal service on each father no less than 30 days prior to the continued hearing date. Additionally, Petitioner will need to provide the original Certificate of Publication.

JONES, ET AL. VS. TAYLOR

CASE NUMBER: 22CV-0201290

Tentative Ruling on Motion for Reconsideration: Plaintiffs Tiffanie Jones, Kim Harmon, and Stephen Huston move for reconsideration of a ruling made on Defendant Sally Taylor's Motion to Terminate the Case on May 11, 2026. While the motion was timely filed per CCP § 1008, Plaintiffs have not complied with CCP § 1005(b) which requires that the moving papers be filed and served at least sixteen court days prior to the hearing. The motion was filed on May 18, 2026 for a hearing date on June 1, 2026. This is untimely. The Proof of Service contained within the motion does not reflect how or when the moving papers were served, is not signed, and not dated. The Motion for Reconsideration is **DENIED** for being filed untimely and because there is no Proof of Service indicating that Defendant was noticed with the motion. Plaintiffs did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiffs are to prepare the Order.